

TENTATIVE RULING

Case: Rexel USA, Inc. v. Solargistix LLC
Case No. CV2025-0116

Hearing Date: March 17, 2026 Department Fourteen 9:00 a.m.

Plaintiff Rexel USA, Inc.’s motion for summary adjudication is **DENIED AS MOOT**. (Code Civ. Proc., § 437c.) Plaintiff seeks summary adjudication against defendant Breit ACG MF Eaglewood LLC (“Breit”). (Notice of motion, p. 1.) On March 4, 2026, defendant Breit was dismissed. (See *In re S.P.* (2020) 53 Cal.App.5th 13, 16.)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Sottana v. General Motors LLC**
Case No. CV2024-2061

Hearing Date: **March 17, 2026** **Department Eleven** **9:00 a.m.**

Motion to tax costs:

The Court rules on defendant General Motors LLC's motion to tax counsel's memorandum of costs as follows:

- The motion as to filing and motion fees is **DENIED**. (Code Civ. Proc., §§ 1032, 1033.5, subd. (a)(1).) The Court finds that these costs were reasonably necessary to the litigation and actually incurred. (Civ. Code, § 1794; *Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266; *Foothill-De Anza Community College Dist. v. Emerich* (2007) 158 Cal.App.4th 11, 29; *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137 – 138; Argent Decl., ¶ 3, Exhibit 1.)
- The motion as to service of process costs is **DENIED**. (Code Civ. Proc., §§ 1032, 1033.5, subd. (a)(4)(B).) The Court finds that this cost were reasonably necessary to the litigation and actually incurred. (Civ. Code, § 1794; *Jones, supra*, 63 Cal.App.4th at p. 1266; *Foothill-De Anza Community College Dist., supra*, 158 Cal.App.4th at p. 29; *Jensen, supra*, 35 Cal.App.4th at pp. 137 – 138; Argent Decl., ¶ 4, Exhibit 2.)

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Motion for attorney fees:

Plaintiff Steven Sotanna's motion for attorney fees is **GRANTED IN PART** in the amount of **\$46,558.00**. (Civ. Code. § 1794.) The Court finds that:

- Defendant General Motors LLC has not shown that any of the challenged fees are excessive or were not reasonably incurred by plaintiff in connection with the commencement and prosecution of this action. (Civ. Code, § 1794, subd. (d); *Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn.* (2008) 163 Cal.App.4th 550, 564; *Horsford v. Board of Trustees of California State University* (2005) 132 Cal.App.4th 359, 396 [“...verified time statements of the attorneys, as officers of the court, are entitled to credence in the absence of a clear indication the records are erroneous.”]; see *California DUI Lawyers Assn. v. Department of Motor Vehicles* (2022) 77 Cal.App.5th 517, 537 [if the billing entries sufficiently establish the tasks were carried out in connection with the litigation, the fact that they